

An Act

ENROLLED HOUSE
BILL NO. 3497

By: Duel of the House

and

Gollihare of the Senate

An Act relating to criminal procedure; amending 22 O.S. 2021, Section 1053, as amended by Section 2, Chapter 209, O.S.L. 2022 (22 O.S. Supp. 2025, Section 1053), which relates to appeals taken by the state or municipality; providing clarification for certain cases taken up on appeal; and providing an effective date.

SUBJECT: Criminal procedure

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 1053, as amended by Section 2, Chapter 209, O.S.L. 2022 (22 O.S. Supp. 2025, Section 1053), is amended to read as follows:

Section 1053. Appeals to the Court of Criminal Appeals may be taken by the state or a municipality in the following cases only:

1. Upon judgment for the defendant on quashing or setting aside an indictment or information;
2. Upon an order of the court arresting the judgment;
3. Upon a question reserved by the state or a municipality;
4. Upon judgment for the defendant on a motion to quash for insufficient evidence in a felony matter;
5. Upon a final pretrial order, decision, or judgment:

a. suppressing evidence on constitutional grounds, or

b. excluding evidence on any other grounds,

where appellate review of the issue would be in the best interests of justice;

6. Upon a final pretrial order, decision or judgment:

a. suppressing evidence on constitutional grounds, or

b. excluding evidence on any other grounds,

in cases alleging a violation of any of the provisions of Section 13.1 of Title 21 of the Oklahoma Statutes; and

7. Upon an order, decision or judgment finding that a defendant is immune from or not subject to criminal prosecution.

Priority shall be given to appeals taken pursuant to paragraph 5, 6, or 7 of this section, and an order staying proceedings shall be entered pending the outcome of the appeal.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 25th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 28th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____